

April 3, 2026, Civil Law & Motion Tentative Rulings

1. CU0001395 Eric Butterworth et al vs. Mountain Concepts, LLC et al

Appearances are required. The Court is inclined to grant Attorney Alexandra M. Asterlin's unopposed motion to be relieved as counsel for all Defendants. Counsel shall confirm whether the motion is intended to include Mountain Concepts, LLC as both Defendant and Cross-Complainant.

The Court, on its own motion, continues the April 13, 2026, case management conference to June 15, 2026, at 09:00. Counsel Asterlin shall give notice to all parties.

In addition, Counsel is ordered to prepare and submit a revised order (MC-053) that reflects the continued case-management conference date. The order relieving counsel will be deemed effective only when Counsel files a proof of service with the Court of a copy of the signed order on the client. See California Rules of Court, rule 3.1362(e). Counsel shall submit the revised order for the Court's signature within two (2) court days of the Court's order becoming final.

2. CU0001683 County of Nevada vs. Michael James Taylor

Defendant's Motion for Entry of Judgment on the Cross-Complaint

Defendant's unopposed motion for entry of judgment on the cross-complaint is construed as a request for dismissal of the cross-complaint pursuant to Code of Civil Procedure section 581(f)(1) after the County's demurrer to the cross-complaint was sustained without leave to amend. See October 10, 2025, Order. As construed, the motion is granted. Plaintiff shall submit an appropriate order approved as to form by Defendant within 10 days. See Code Civ. Proc. § 581d ("All dismissals ordered by the court shall be in the form of a written order signed by the court and filed in the action and those orders when so filed shall constitute judgments and be effective for all purposes...."); *Powell v. County of Orange* (2011) 197 Cal.App.4th 1573, 1575 ("an order of dismissal is ineffective as a judgment under Code of Civil Procedure section 581d ... unless it is in writing, signed by the trial court, and filed.").

Defendant's Motion for Reasonable Accommodation

Defendant's motion for reasonable accommodation of his disabilities under the Americans with Disabilities Act and Rule of Court 1.100, is granted in part.

Rule 1.100 states and implements the policy of the California courts to "ensure that persons with disabilities have equal and full access to the judicial system." Rule of Court 1.100(b).

"Accommodations" are defined as

actions that result in court services, programs, or activities being readily accessible to and usable by persons with disabilities. Accommodations may include making reasonable modifications in policies, practices, and procedures; furnishing, at no charge, to persons with disabilities, auxiliary aids and services, equipment, devices, materials in alternative formats, readers, or certified interpreters for persons with hearing